

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable Gary J. Ferrari
Judge of the Superior Court
County of Los Angeles
275 Magnolia Avenue
Long Beach, CA 90802

Re: Acosta, Albert Joseph
CDC No.: AL7316
Case No.: NA090650-01
Date of Sentence: 5/11/2012

Dear Honorable Gary J. Ferrari:

The purpose of this letter is to provide the court with authority to resentence Albert Joseph Acosta pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Acosta was sentenced in 2012, and was convicted of section 245, subdivision (A)(1), ASSAULT WITH A DEADLY WEAPON. The trial court sentenced inmate Acosta on 5/11/2012. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Acosta's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Acosta's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,

A blue ink signature of Ralph M. Diaz, written in a cursive style. The signature is positioned above the printed name and title of the signatory.

RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

OK TO GO BTWD NOTED
June 18, 12 DC

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM

[Not to be used for multiple count convictions or for 1/3 consecutive sentences]

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES; SOUTH DISTRICT		CONFIRMED COPY OF ORIGINAL FILED Los Angeles Superior Court JUN 06 2012 John A. Clarke, Executive Officer/Clerk By: <i>S. Carter</i> , Deputy	
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: ACOSTA, ALBERT JOSEPH AKA: RASKAL CII NO.: A24935819 BOOKING NO.: 2950178 <i>ALTBIV</i>		DOB: 06-11-89 ☐ NOT PRESENT	CASE NUMBER NA090650-01 
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT ☐ AMENDED ABSTRACT			
DATE OF HEARING 05-11-12	DEPT. NO. SOM	JUDGE GARY J. FERRARI	
CLERK TYRA BAHAM	REPORTER THERESE CLAUSSEN	PROBATION NO. OR PROBATION OFFICER X-2081701 ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE ROBERT T. HIGHT		COUNSEL FOR DEFENDANT STEVE KWON-PD ☐ APPTD.	

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY	TERM (L/M/U)	TIME IMPOSED
01	PC	245(A)(1)	ASSAULT WITH A DEADLY WEAPON	2011	05-11-12	X	U	4 0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
01	2022.7(A)PC	3					3 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
186.22(B)(1)(B)PC	5					5 0

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments): ☒ Court Security Fee of \$40.00 per PC 1465.8.

Restitution Fine(s): \$2400.00 per PC 1202.4(b) forthwith per PC 2085.5; \$2400.00 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4(f): ☐ \$ / ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
☐ *Victim name(s), if known, and amount breakdown in item 8 below. ☐ *Victim name(s) in probation officer's report.

Fine(s): \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

6. TESTING: a. ☐ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify):

7. IMMEDIATE SENTENCE: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Deft's Race/Nat'l Origin

8. Other orders (specify): DEFENDANT TO PAY \$30.00 CRIMINAL CONVICTION ASSESSMENT PURSUANT TO 70373 G.C. THE COURT RECOMMENDS DEFENDANT HOUSED AT SAME FACILITY AS CO-DEFENDANT, BERT ACOSTA.

9. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: 12 0

10. ☐ This sentence is to run concurrent with (specify):

11. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation. d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

DATE SENTENCE PROUNOUNCED 05-11-12	CREDIT FOR TIME SPENT IN CUSTODY 203	TOTAL DAYS INCLUDING: 203	ACTUAL LOCAL TIME 177	LOCAL CONDUCT CREDITS 26	☒ 4019 ☐ 2933.1	TIME SERVED IN STATE INSTITUTION: DMH CDCR CRC
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13. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

S. CARTER

06-06-12

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.